

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

FIAT CHRYSLER AUTOMOBILES NV, FCA US LLC, AND
FCA ITALY S.P.A., *Complainants*

DOCKET NO. 17-09

v.

WALLENIOUS WILHELMSSEN LOGISTICS AS, WALLENIOUS
WILHELMSSEN LOGISTICS AMERICAS LLC, EUKOR CAR
CARRIERS INC., NIPPON YUSEN KABUSHIKI KAISHA, NYK
LINE (NORTH AMERICA) INC., MITSUI O.S.K. LINES, LTD.,
MOL (AMERICA) INC., KAWASAKI KISEN KAISHA, LTD.,
“K” LINE AMERICA, INC., COMPAÑIA SUD AMERICANA DE
VAPORES S.A., AND HOËGH AUTOLINERS AS, *Respondents*.

Served: February 26, 2019

ORDER OF: Erin M. WIRTH, *Administrative Law Judge*.

ORDER ON COMPLAINANTS’ MOTION TO EXTEND THE SCHEDULING ORDER

On February 20, 2019, Complainants filed a motion seeking a six-month extension of the dates in the scheduling order issued on August 13, 2018, arguing that it would assist settlement talks and “allow for the most efficient resolution of this matter.” Motion at 1-2.

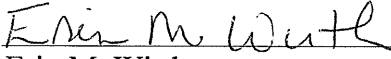
On February 25, 2019, Respondents filed a consolidated opposition to the motion, requesting that the motion be denied, or alternatively, granted prospectively and for a shorter period of time. Opposition at 10. Respondents indicate that Complainants have not served their expert witness report as scheduled on February 15, 2019, but rather sent Respondents an email that day requesting an extension; that there are no ongoing settlement discussions that require an extension; and that there are issues with written discovery and deposition notices. Opposition at 6-10.

The initial scheduling order was longer than typically approved and Complainants have not established a need for a six-month extension. The due date for the initial decision in this proceeding has already been extended to October 17, 2019. Given the complexity of the issues involved, an extension of approximately sixty days will be granted. The extension will include the February 15, 2019, deadline and will include minor adjustments due to weekends and holidays.

For the reasons stated above, it is hereby **ORDERED** that Complainants' motion be **GRANTED IN PART AND DENIED IN PART**. The parties shall abide by the following revised schedule:

April 16, 2019	Complainants' expert witness report(s) to be served.
May 3, 2019	Depositions of all fact witnesses and fact discovery completed.
June 3, 2019	Respondents' expert witness report(s) to be served.
July 12, 2019	Depositions of expert witnesses completed.
August 12, 2019	Complainants file brief, proposed findings of fact, and appendix.
September 12, 2019	Respondents file opposition brief, proposed findings of fact, appendix, and responses to Complainants' proposed findings of fact.
September 27, 2019	Complainants file reply brief and responses to Respondents' proposed findings of fact.

The parties must coordinate the scheduling of depositions and other discovery to ensure completion by the deadlines above. The requirements in the Scheduling Order regarding how to file documents should be followed. The parties are encouraged to continue to discuss settlement and to proceed expeditiously.


Erin M. Wirth
Administrative Law Judge